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Sealed Complete Outside-Counsel Investigation Memorandum — Outside- CM/ECF Exchanged Copy

United States District Court for the Eastern District of North Carolina

Rhea Calder v. Cinder Lake Health Network, Inc.

Civil Action No. SYN-EDNC-25-CV-0882

Provisional Sealed Exhibit DE29-S1 — Exchanged January 29, 2026; lodged offline February 26, 2026

Privileged and Attorney Work Product — Fictional Exercise Material

This complete twelve-page memorandum was provided to Cinder Lake's litigation counsel and exchanged with Calder on January 29, 2026 as an entitled-party offline paper copy under protective handling. That exchange was not a court filing. On February 26, it was provisionally lodged offline with the district clerk as proposed sealed Exhibit DE29-S1.

The document is wholly synthetic. Its page-for-page relationship with the public counterpart does not represent PACER, CM/ECF, or public access to a sealed judicial record.

Engagement and Questions Presented

Cinder Lake asked fictional outside counsel Rowan Vale to determine what the existing business record showed about Calder's billing exceptions; assess whether known facts suggested federal-program exposure; advise whether an external response was appropriate; evaluate employment-retaliation risk; and recommend lawful remediation.

Vale directed collection and interviews so legal advice could be given in anticipated regulatory and employment litigation. Counsel treated ordinary business documents as underlying evidence, not privileged merely because reviewed, and separated those records from confidential requests, interview communications, mental impressions, and advice.

August 21 Disclosure and Waiver Analysis

Counsel advised that the August 21 response disclosed corporate conclusions and completed remediation, but no privileged communication or information. The sentence stating that outside counsel reviewed Calder's reports disclosed the fact of review, not what a client or witness communicated or what counsel advised. The measures described organizational conduct.

Counsel further advised against using undisclosed advice to prove good faith. In this fictional analysis, because no protected communication was intentionally disclosed, the initial predicate for broad subject-matter waiver was absent; shared topic and fairness alone could not substitute for actual disclosure.

Method, Selection, and Mental Impressions

Vale prioritized the June exception reports, sampled ordinary reconciliation records across relevant control periods, interviewed personnel with firsthand knowledge, and compared employment documentation created before and after Calder's reports. Counsel selected sources to test both a systemic-misconduct hypothesis and innocent process explanations.

The sequence reflected counsel's judgment about legal risk. Vale noted that document gaps could support competing inferences and instructed the team not to equate a control weakness with knowing submission. These selections and assessments were prepared to advise Cinder Lake and because litigation was reasonably anticipated.

Historical Chronology and Evidentiary Assessment

Calder reported exceptions June 4 and June 18 and provided a detailed intake account June 27. Preservation began July 3. Collection revealed delayed documentation and inconsistent escalation practices, but the sampled records did not show a direction to submit claims known to lack support. Remediation planning began August 12.

Vale distinguished this compliance assessment from Calder's employment claim. A July 18 performance notice postdated the reports and required separate scrutiny. The August 21 response preceded Calder's September 12 discharge and did not address that later decision.

Source Communications

Compliance director Selene Ward told counsel that Calder's reports prompted escalation outside the affected business line and that no conclusion had been fixed before review. Billing-control manager Ivo Renn described inconsistent exception coding and delayed follow-up but denied instructions to ignore missing support. Human-resources director Lysa Moor described preexisting concerns about Calder's deadline and collaboration practices.

Vale assessed the accounts as partly corroborated and partly disputed by contemporaneous records. These fictional communications were made confidentially for legal advice; the underlying witnesses may be asked for their own facts through ordinary discovery.

Documentary Record and Gaps

The reviewed materials included Calder's reports, exception summaries, reconciliation policies, training rosters, escalation notices, calendar entries, performance records, and remediation implementation records. Counsel found that some business files lacked consistent explanatory notes, limiting reconstruction of why individual exceptions remained open or closed.

Vale advised preserving the gaps rather than filling them through inference. Ordinary documents responsive to discovery should be produced from custodial sources. Counsel's annotated selections, issue tags, and cross-document synthesis remain work product.

Billing-Exception Findings and Legal Characterization

The sample supported a conclusion that controls needed strengthening. Several items required added support or correction, but available records did not establish a systemic practice of knowingly presenting unsupported claims. Counsel cautioned that a regulator could request a broader sample and that intent could not be resolved from exception counts alone.

Vale recommended completing ordinary correction processes, documenting the basis for each disposition, and avoiding public claims that the review had exonerated every transaction. The August 21 response adopted a narrower corporate conclusion.

Employment Events and Retaliation Risk

The record showed that performance concerns existed before June but became more formal after Calder's reports. Meeting changes had mixed explanations: preservation needs supported limiting Calder's access to active review files, while some communications used language that could be read as frustration with her escalation.

Vale advised that temporal proximity and inconsistent documentation created material retaliation risk even if supervisors asserted independent reasons. Counsel recommended preserving all decision records and ensuring that witnesses testify from personal knowledge rather than repeating legal assessments.

Remediation Evaluation

Vale evaluated revised escalation guidance, targeted training, and a supervisory reconciliation requirement. Counsel considered those steps reasonably directed to the identified control weaknesses but advised monitoring completion and measuring whether old exceptions received consistent review.

The advice did not treat remediation as an admission. Vale recommended describing what Cinder Lake did without saying counsel required a specific measure. Implementation records would remain ordinary business evidence; communications asking why a measure was legally advisable would retain their separate character.

Legal Risks and Recommendations

Counsel identified potential federal-program inquiry, preservation, retaliation, and disclosure risks. Recommendations included completing corrections, maintaining a transparent nonprivileged chronology, avoiding an advice-of-counsel defense, producing underlying facts through ordinary sources, and logging protected communications individually.

Vale also advised that any later litigation-disclosure order would operate prospectively and would not change the August 21 letter's content. If waiver were asserted, counsel recommended comparing the exact disclosed words with the exact communication claimed to be opened rather than accepting a categorical subject label.

Conclusion and Complete-Copy Certification

The investigation supported remediation and continuing review, did not establish systemic knowing submission on the sampled record, and revealed employment-litigation risk requiring careful preservation and fact development. These are fictional attorney assessments supplied solely for this exercise.

Rowan Vale signed the memorandum for Cinder Lake on January 28, 2026 and certified this complete synthetic copy on January 29, 2026. Mara Voss certifies that the entitled-party copy was exchanged and later provisionally lodged outside CM/ECF on February 26. It was not electronically filed, retrieved, or made publicly accessible.